

25STCV27772 25STCV27772

County: los-angeles

Division: Civil Law and Motion

Department: 734

Hearing date: 2026-07-31

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Case Number: 25STCV27772 Hearing Date: July 31, 2026 Dept: 734

The

following tentative ruling is issued pursuant to Rule of Court 3.1308 at 1:25 PM on July 30, 2026.

Rule

of Court 3.1308(a)(1) provides that a “tentative ruling will become the ruling of the court if the court has not directed oral argument by its tentative ruling and notice of intent to appear has not been given.”

The

Court does not desire oral argument on the motion addressed herein. Notice of intent to appear is REQUIRED pursuant to California Rule of Court 3.1308(a)(1).

No

later than 4:00 p.m. on July 30, 2026, the moving and opposing parties must provide notice to ALL OTHER PARTIES and the staff of Department 734 whether the party intends to (1) appear and argue the motion, or (2) submit to the tentative ruling.

Notice to Department 734 should be sent by

email to , with opposing parties copied on the email. The high volume of telephone calls to Department 734 may delay the Court's receipt of notice, so telephonic notice to 213-830-0776 should be reserved for situations where parties are unable to give notice by email.

If all parties submit on the tentative, no appearances will be necessary: the Court will adopt the tentative ruling and set a status conference on January 27, 2027 at 8:30 a.m. as noted below.

Plaintiff sues Defendant for alleged failure

to bring the subject vehicle into compliance with applicable warranties.

Defendant Tesla, Inc. moves to compel arbitration and stay this action.

TENTATIVE RULING

Defendant

Tesla, Inc.'s motion to compel arbitration and stay this action is GRANTED. A status conference re: arbitration is set for January 29, 2027 at 8:30 a.m. Status conference briefs are due by January 22, 2026.

ANALYSIS

Motion To Compel Arbitration and Stay Action

Request For Judicial Notice

Defendant's

request that the Court take judicial notice of the Complaint filed in this action is GRANTED per Evid. Code § 452(d)(court records).

Discussion

The Court has

reviewed the moving, opposing and reply briefs filed by the parties, but only addresses the points which the Court deems to be material to the disposition of this motion.

Defendant

Tesla, Inc. moves to compel arbitration and stay this action.

Existence

of Agreement To Arbitrate

Under

California law, arbitration agreements are valid, irrevocable, and enforceable, save upon such grounds as exist at law or in equity for the revocation of any contract.

(Blake v. Ecker (2001) 93 Cal.App.4th

728, 741 overruled on other grounds by Le Francois v. Goel (2005) 35 Cal.4th

1094.) A party petitioning to compel arbitration

has the burden of establishing the existence of a valid agreement to arbitrate and

the party opposing the petition has the burden of proving, by a preponderance of the evidence, any fact necessary to its defense. (Banner Entertainment, Inc. v. Superior Court (1998) 62 Cal.App.4th 348, 356-57.)

On

March 28, 2022, Plaintiff entered into a purchase agreement with Tesla Motors Inc. for a 2022 Model Y. (Raymond Kim Decl., Exh. 2.) Plaintiff's E-signature appears on the signature line right below the language in pertinent part:

YOU AGREE TO THE

TERMS OF THIS CONTRACT. YOU CONFIRM THAT BEFORE YOU SIGNED THIS CONTRACT, WE GAVE IT TO YOU, AND YOU WERE FREE TO TAKE IT AND REVIEW IT. YOU ACKNOWLEDGE THAT YOU HAVE READ ALL PAGES OF THIS CONTRACT, INCLUDING THE ARBITRATION PROVISION ON PAGE 7 OF THIS CONTRACT, BEFORE SIGNING BELOW. YOU CONFIRM THAT YOU RECEIVED A COMPLETELY FILLED-IN COPY WHEN YOU SIGNED IT.

(Agreement, Page 6 of 7.)

Plaintiff

has not challenged the fact that Plaintiff's signature appears on the document.

The

Agreement includes the following arbitration clause which states in pertinent part as follows:

Any claim or dispute, whether in contract, tort, statute or otherwise (including the interpretation and scope of this Arbitration Provision, and the arbitrability of the claim or dispute), between you and us or our employees, agents, successors or assigns, which arises out of or relates to your credit application, purchase or condition of this vehicle, this contract or any resulting transaction or relationship (including any such relationship with third parties who do not sign this contract) shall, at your or our election, be resolved by neutral, binding arbitration and not by a court action. If federal law provides that a claim or dispute is not subject to binding arbitration, this Arbitration Provision shall not apply to such claim or dispute. Any claim or dispute is to be arbitrated by a single arbitrator on an individual basis and not as a class action. You expressly waive any right you may have to arbitrate a class action. You may choose the American Arbitration Association, 1633 Broadway, 10th Floor, New York, New York 10019 (www.adr.org), or any other organization to conduct the arbitration subject to our approval. You may get a copy of the rules of an arbitration organization by contacting the organization

or visiting its website.

(Arbitration Agreement, first paragraph [bold emphasis and underlining added].)

Plaintiff's

claims against Tesla relate to the resulting relationship between Plaintiff and Defendant Tesla resulting from the sale, i.e., Defendant's warranty obligations.

In

the Opposition, Plaintiff cites the following language from *Ngo v. BMW of N. Am., LLC*, 23 F.4th 942, 949

As an initial

matter, under California law, warranties from a manufacturer that is not a party to a sales contract are "not part of [the] contract of sale." (Citations omitted.) Instead, the express and implied warranties arise "independently of a contract of sale." (Citations omitted").

(*Ngo v.*

BMW of N. Am., LLC (9th Cir. 2022) 23 F.4th 942, 949 [bold emphasis and underlining modified by Court.]

Plaintiff

also references *Ford Motor Warranty Cases* (2025) 17 Cal.5th 1122, which is inapposite because it addressed an estoppel theory asserted by a non-signatory manufacturer.

Here,

Tesla is the manufacturer and party to the sales contract. (Agreement, Page 1.)

As such, Tesla is deemed to be the party expressly referred to in the arbitration provision, which purports to apply to claims arising out of contract, tort and statute. Plaintiff's causes of action for violation of various Song-Beverly Act provisions and for fraudulent concealment come within the scope of the arbitration provision.

As

such, the Court finds that Defendant Tesla is entitled to enforce the arbitration clause as a party to the arbitration agreement.

The

question of arbitrability has been delegated to the arbitrator by virtue of the

language “including the interpretation and scope of this Arbitration Provision, and the arbitrability of the claim or dispute.”

Courts have held

that “[t]here are two prerequisites for a delegation clause to be effective. First, the language of the clause must be clear and unmistakable. [Citation.] Second, the delegation must not be revocable under state contract defenses such as fraud, duress, or unconscionability.” (Aanderud, supra, 13 Cal.App.5th at p. 892.)

(Mendoza v. Trans Valley Transp. (2022) 75 Cal.App.5th 748, 773.

Aanderud v. Superior Court (2017) 13 Cal.App.5th 880, 892 addressed the language in the subject arbitration clause that:

[The parties] “agree to arbitrate all disputes, claims and controversies arising out of or relating to ... (iv) the interpretation, validity, or enforceability of this Agreement, including the determination of the scope or applicability of this Section 5 [the “Arbitration of Disputes” section]. ...” This language delegates to the arbitrator questions of arbitrability and is clear and unmistakable evidence that the parties intended to arbitrate arbitrability. (See, e.g., Malone v. Superior Court (2014) 226 Cal.App.4th 1551, 1560 [173 Cal. Rptr. 3d 241] [noting delegation clause that provided “ ‘[t]he arbitrator has exclusive authority to resolve any dispute relating to the interpretation, applicability, or enforceability of this binding arbitration agreement’ ” was clear and unmistakable]; Momot v. Mastro (9th Cir. 2011) 652 F.3d 982, 988 [language that delegated authority to arbitrator to determine “the validity or application of any of the provisions of” the arbitration clause was a clear and unmistakable agreement to arbitrate the question of arbitrability].)

(Aanderud v. Superior Court (2017) 13 Cal.App.5th 880, 892 [bold emphasis and underlining added].)

The

Aanderud court used the term “arbitrability” to refer to questions of “interpretation, validity or enforceability” and “scope or applicability.” (Id. at 892.) Based upon this holding, the reference in the subject arbitration clause that the parties delegate any claim or dispute including “the interpretation and scope” of the arbitration provision, and “the arbitrability of this claim or dispute,” is a clear and unmistakable delegation of the issues of validity and enforceability, i.e., as to the defense

of unconscionability, which affects validity or enforceability. "The doctrine of unconscionability is a defense to the enforcement

of a contract or a term thereof. (Civ. Code, § 1670.5; California Grocers Assn. v. Bank of America (1994)

22 Cal. App. 4th 205, 213 [27 Cal. Rptr. 2d 396].)" (Marin Storage

& Trucking, Inc. v. Benco Contracting & Eng'g, Inc. (2001) 89

Cal. App. 4th 1042, 1049.)

The Court finds that the delegation of

the question of "arbitrability" delegates issues of scope, applicability, interpretation,

validity and enforceability, including the question of unconscionability, to the

arbitrator. As such, the Court does not address

Plaintiff's unconscionability argument.

In light of

the foregoing discussion, the motion to compel arbitration and stay this action

is GRANTED. A status conference re: arbitration is set for January 29, 2027 at 8:30

a.m. Status conference briefs are due by January 22, 2026.